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Case Number: 25NWCV00081 Hearing Date: July 29, 2026 Dept: C

GARCIA v. SOUTHLAND

MANAGEMENT LLC, et al.

CASE NO.: 25NWCV00081

HEARING: 7/29/26

@ 9:30 AM

#10

TENTATIVE RULING

DOE

Defendant THE ENSIGN GROUP, INC.'s Demurrer to Plaintiff JULIA ARASELI GARCIA's

First Amended Complaint is OVERRULED. ENSIGN

GROUP's Motion to Strike is DENIED.

Plaintiff to give NOTICE.

DOE Defendant THE ENSIGN GROUP, INC. (Ensign

Group) demurs to the first cause of action for Dependent Adult Neglect in

Plaintiff JULIA ARASELI GARCIA's (Plaintiff) First Amended Complaint (FAC). The issue here is whether a Doe Amendment adding Ensign Group to the FAC is sufficient to state a cause of action against

it when the FAC makes no other mention of Ensign Group. Given the Court's previous order overruling

the demurrer brought by the original defendants, and the FAC's detailed alter

ego allegations, the Court concludes that nothing more is required at this

stage of the proceedings.

BACKGROUND

The Complaint in this personal injury action was filed January 9, 2025 by Plaintiff JULIA ARASELI GARCIA, a dependent adult, against Defendants SOUTHLAND MANAGEMENT LLC dba SOUTHLAND CARE, FLAGSTONE HEALTHCARE SOUTH LLC, ENSIGN SERVICES INC, and DOES 1 through 75, inclusive, in connection with her admission as a resident to Southland Care, a skilled nursing facility.

On October 6, 2025, the Court heard Defendants' demurrer to the Complaint and motion to strike allegations pertaining to punitive damages. As relevant here, the Court overruled the demurrer as to the first cause of action for Dependent Adult Neglect and denied the motion to strike.

In the operative First Amended Complaint filed on October 24, 2025, Plaintiff alleges she was first admitted as a resident to Defendant's Skilled Nursing Facility, SOUTHLAND CARE, on or about July 13, 2016, and was most recently re-admitted on February 21, 2024, with diagnoses including a right femur fracture, age-related osteoporosis, fibromyalgia, and dorsalis (back pain). On March 19, 2024, at around 7:00 p.m., following a doctor's appointment, Plaintiff was being transported in the facility's van back to the facility, operated by staff of the facility. Plaintiff was in her wheelchair in the van, however the wheelchair was improperly secured in the van by facility staff, including but not limited to the fact that staff only secured a lap belt but not a shoulder strap. While commuting back to the facility, the facility van driver made an abrupt stop at a yellow light, which caused Plaintiff to be thrown forward onto the floor of the van, with her wheelchair landing on top of her. Based thereon, the FAC alleges the following causes of action:

1.
Dependent Adult Neglect (Pursuant to the Elder and Dependent Adult Civil Protection Act - Welfare and Institution Code §§ 15600, et seq.);

2.
Willful Misconduct;

- 3.

Negligence; and

4.

Violation of Patient's Rights (Pursuant to Health & Safety Code § 1430).

On May 5, 2026, Plaintiff filed and served a DOE Amendment adding Ensign Group as DOE 1.

LEGAL STANDARD

The party against whom a complaint has been filed may object to the pleading, by demurrer, on several grounds, including the ground that the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) A party may demur to an entire complaint, or to any causes of action stated therein. (CCP § 430.50(a).) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Flynn v. Higham (1983) 149 Cal.App.3d 677, 679.)

The burden is on the complainant to show the court that a pleading can be amended successfully, to obtain an order allowing leave to amend. (McKenney v. Purepac Pharmaceutical Co. (2008) 167 Cal.App.4th 72, 78.) "Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law." (Lawrence v. Bank of America (1985) 163 Cal.App.3d 431, 436.)

MEET AND CONFER

The parties have adequately met and conferred.

DISCUSSION

First

Cause of Action: Dependent Adult Neglect

The

Elder Abuse and Dependent Adult Civil Protection Act (Welf. & Inst. Code, § 15600 et seq.) provides for steep penalties against those who abuse an elder or

a dependent adult. Dependent adult abuse includes physical abuse, neglect, isolation, deprivation by a care custodian of necessary goods or services, and financial abuse. (Welf. & Inst. Code, § 15610.07, subd. (a).)

“Neglect”

is defined as “[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subd. (a).) Neglect includes failure to assist in personal hygiene, failure to provide medical care for physical and mental health needs, and failure to protect from health and safety hazards. (Welf. & Inst. Code, § 15610.57, subd. (b).)

[S]everal

factors [] must be present for conduct to constitute neglect within the meaning of the Elder Abuse Act and thereby trigger the enhanced remedies available under the Act. The plaintiff must allege (and ultimately prove by clear and convincing evidence) facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness). The plaintiff must also allege (and ultimately prove by clear and convincing evidence) that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering. Finally, the facts constituting the neglect and establishing the causal link between the neglect and the injury “must be pleaded with particularity,” in accordance with the pleading rules governing statutory claims. (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406-407, citations omitted.)

Acts

which are prohibited under the Elder Abuse Act provisions of the Welfare and Institute Code “do not include acts of simple professional negligence, but refer to forms of abuse or neglect performed with some state of culpability greater than mere negligence.” (Covenant

Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 781 (Covenant Care).) To constitute abuse and neglect within the meaning of the Elder Abuse Act, thereby triggering the enhanced remedies available under the Act, a plaintiff "must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct," with recklessness referring "to a subjective state of culpability greater than simple negligence, which has been described as a 'deliberate disregard' of the 'high degree of probability' that an injury will occur," and '[o]ppression, fraud and malice [involving] intentional or conscious wrongdoing of a despicable or injurious nature.'" (Sababin v. Superior Court (2006) 144 Cal.App.4th 81, 88-89, quotation marks omitted.)

Ensign

Group argues that the FAC fails to allege facts specific to Ensign Group, as opposed to Ensign Services, the entity named in the original Complaint. The FAC makes no mention of Ensign Group by name.

Moreover,

Ensign Group argues it is a corporate entity that holds no license to operate as a medical facility. Therefore, Ensign Group is not a "care custodian" within the meaning of the Elder Abuse and Dependent Adult Civil Protection Act. (Welf. & Inst. Code, § 15600 et seq.) Ensign Group argues that the FAC is silent as to Ensign Group and what its role in plaintiff's care was. However, the FAC does specifically allege that Southland was a 120-bed Skilled Nursing Facility. (FAC ¶2). The FAC admits that plaintiff was admitted to Southland "to secure and receive appropriate medical and custodial care and treatment as was reasonable and necessary relative to her then-existing medical condition, health and well-being." (FAC ¶1) The FAC goes on to allege that all defendants were owned and operated by Ensign Services. (FAC ¶6-8) However, if everything was owned and operated by Ensign Services, it leaves ambiguity as to Ensign Group's role.

In

opposition, Plaintiff argues that the FAC contains fourteen paragraphs of detailed alter ego allegations establishing that the named defendants constitute a unified enterprise – connecting that enterprise to every aspect of Southland's operations, including staffing decisions, financial policy, compliance obligations, and management directives – that directly caused the conditions leading to Plaintiff's injuries. (FAC ¶¶ 4-17) According to

Plaintiff, the Doe Amendment substituting Ensign Group as DOE 1 incorporates these allegations against Ensign Group in full.

The

Court finds that Plaintiff has alleged sufficient facts as to Ensign Group. The key issue is whether Plaintiff alleges sufficient facts to demonstrate that Ensign Group, together with the other defendants, exercised sufficient control over the activities of Southland Care. If so, this Court has already determined there are sufficient facts to support the dependent adult neglect cause of action against the original defendants. (See, October 6, 2025 Order overruling demurrer.)

In

a parent-subsidary relationship, the agency doctrine may bind a parent to the contracts of its subsidiary where, in addition to owning the subsidiary, the parent company exercises “sufficient control over the [subsidiary's] activities” such that the subsidiary becomes a “mere agen[t] or ‘instrumentality’ of the parent.” (Cohen v. TNP 2008 Participating Notes Program, LLC. (2019) 31 Cal.App.5th 840, 862.

Ensign

Group argues that paragraphs 4-17 are all based on allegations against Ensign Services, not Ensign Group. For example, Plaintiff alleges:

While the Defendants have formed multiple corporations, LLCs, and limited and general partnerships, they in fact act as one entity and, ultimately, are all completely owned and/or controlled by ENSIGN SERVICES INC. The Defendants either make or approve key decisions concerning SOUTHLAND CARE's day-to-day operations. Plaintiff is informed and believes, and based thereon allege, that all transactions among the entities are part of one general ledger.

(FAC,

¶ 6.)

At

this stage of the case, when discovery has not been completed, the Court finds that Plaintiff adequately alleges a unified enterprise and agency relationship between Ensign Services, Ensign Group and Southland Care.

As

to the DOE defendants, Plaintiff alleges

The true names and capacities, whether individual, corporate, associate, or otherwise, of the defendants named herein as DOES 1 through 75 inclusive are presently unknown to Plaintiff. On information and belief, each of the defendants designated as a "DOE" is legally responsible for the events or injuries alleged herein, and proximately caused the damages described. Plaintiffs will amend this complaint to allege their true names and capacities when ascertained. Plaintiffs will refer to all the defendants, including DOES 1 through 75, collectively as "Defendants."

(FAC,

¶ 5.)

Plaintiff

further alleges that "All of the Defendants can be traced back through the various ownership trails as being ultimately owned and/or controlled by ENSIGN SERVICES INC." (FAC, ¶ 6 (emphasis added).) Thus, the FAC now includes Ensign Group as one of the "multiple corporations" that "act as one entity" to control Southland Care. (Id.)

Accordingly,

the demurrer is OVERRULED.

MOTION

TO STRIKE

The

grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (CCP §436.) When the defendant is a business entity, § 3294(b) requires authorization, ratification, or personal malice by an officer, director, or managing agent. Whether an individual is a "managing agent" turns on substantial discretionary authority over corporate policy, a fact question rarely resolvable on the pleadings. (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 577; Roby v. McKesson Corp. (2009) 47 Cal. 4th 686, 714–715.) In order to plead a prima facie claim for punitive damages, a plaintiff must plead the ultimate facts from which it can reasonably be inferred that a defendant acted with "oppression, fraud, or malice" against the plaintiff

within the meaning of Civil Code § 3294. (Coil. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721; Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-317.)

Ensign Group moves to strike various paragraphs of Plaintiff's FAC seeking punitive damages, attorneys' fees, and related allegations of willful, conscious, or malicious conduct. Specifically, Ensign Group seeks to strike the following:

- Pg. 20:22-24, "As a result of recklessness, malice, oppression or fraud herein alleged, Plaintiff is entitled to an award of punitive damages pursuant to Civil Code Section 3294, in addition to the other remedies available to Plaintiffs";

- Pg. 21:3-5, "Similar to Jarman, Defendants' continual and compound violations of Ms. Garcia's statutory rights under California Health and Safety Code Section 1430(b) constitute 'despicable' conduct, such that Plaintiffs are entitled to punitive damages against Defendant";

- Pg. 23:6-9, "By virtue of the foregoing, and as more fully set forth above, Defendants and each of them have acted with malice and oppression and/or recklessness. Defendants' actions constitute despicable behavior and conscious disregard of the health and safety of Ms. Garcia. An award of punitive damages in a sum according to proof at trial is justified, warranted, and appropriate as to each defendant";

- Pg. 27:2, "For attorney's fees and costs under Welf & IC Section 15657(a)";

- Pg. 27:4, "For punitive damages";

- Pg. 27:11, "For punitive damages";

Given

that the Court has overruled the demurrer to the first cause of action, the motion to strike Plaintiff's request for punitive damages and attorney's fees is DENIED. As discussed in the Court's October 6 2025 Order, Plaintiff has sufficiently

alleged defendants acted with recklessness under the dependent adult neglect cause of action.

Accordingly,
the motion to strike is DENIED.